

		<i>Yankosky</i> (1966) 63 Cal.2d 849, 855, 48 Cal.Rptr. 620, 409 P.2d 700 (<i>Weitz</i>).) <i>Id.</i> Code of Civil Procedure section 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” The procedural requirements for relief from default are: (1) timeliness; (2) submission of proposed pleadings; and (3) proper ground. Code Civ. Proc. § 473(b); <i>Cruz v. Fagor America, Inc.</i> (2006) 146 Cal.App.4th 488, 495. The proposed pleading may be presented at the hearing. <i>Carmel, Ltd. v. Tavoussi</i> (2009) 175 Cal.App.4th 393, 403. <i>See also Dollase v. Wanu Water, Inc.</i> (2023) 93 Cal.App.5th 1315, 1326 (finding attempt to file and subsequent courtesy copy to court sufficient). Here, Plaintiff apparently attempted to file a responsive pleading. [ROA #34.]
12.	2024-1381501 Cisneros vs. Lu	The general and special demurrer by Cross-Defendant California Escrow Group, Inc. (“Escrow Company”) to the sixth, seventh, and eighth causes of action alleged against Escrow Company in the Second Amended Cross-Complaint (“SACC”) filed by Cross-Complainants Ying Lu and Nestwise Group (collectively, “Cross-Complainants”) and Escrow Company’s unopposed motion to strike portions of the SACC are moot. Escrow Company challenges the SACC filed on November 13, 2025. On April 23, 2026, Cross-Complainants filed a Third Amended Cross-Complaint. (ROA NO. 201.) Thus, Cross-Complainants’ TACC supersedes the SACC, and the latter “ceases to have any effect either as a pleading or as a basis for judgment.” (<i>State Compensation Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1130-31.) Accordingly, the demurrer is overruled as moot and the unopposed motion to strike is denied as moot. (<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477.) Cross-Complainants shall give notice.